IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH–I, CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **09.03.2026** THROUGH VIDEO CONFERENCING

CORAM: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER : CA(CAA)/7(CHE)/2026

PETITION NUMBER :

NAME OF THE PETITIONER(S) : BCUBE Ventures Pvt. Ltd.

NAME OF THE RESPONDENT(S) :

UNDER SECTION : Sec 230-232 of CA, 2013

ORDER

Present: Shri. R. Inbaraju, Ld. Counsel for the Applicant.

Vide separate order pronounced in the Open Court, First Motion application is allowed.

Sd/-
[VENKATARAMAN SUBRAMANIAM]
MEMBER (TECHNICAL)

Sd/-
[SANJIV JAIN]
MEMBER (JUDICIAL)

vs

Date: 09.03.2026

IN THE NATIONAL COMPANY LAW TRIBUNAL,
DIVISION BENCH - I, CHENNAI

CA(CAA)/7(CHE)/2026

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Amalgamation between Bcube Ventures Private Limited, and LLM Appliances Private Limited and their Respective Shareholders and Creditors

BCUBE VENTURES PRIVATE LIMITED
(CIN: U27501TN2024PTC167019)
Having registered office at
Plot No 30, Industrial, Estate Main Road,
Perungudi, Kanchipuram, Saidapet, Chennai,
Tamil Nadu, India, 600096,

…Applicant Company-1/Transferor Company

And

LLM APPLIANCES PRIVATE LIMITED
(CIN: U28991TN1994PTC028237)
Having registered office at
37/1, Kolathur Village,
Mambakkam Vandalur, kelambakkam Road,
Chennai, Tamil Nadu, India, 600127.

…Applicant Company-2/Transferee Company

Order Pronounced on 9th March, 2026

CORAM

SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
SHRI. VENKATRAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s) : Mr. Inbaraju R

O R D E R

(*Heard through Hybrid mode*)

1. This is a Joint Company Application viz., **CA(CAA)/7(CHE)/2026** filed by **BCube Ventures Private Limited** (hereinafter "Applicant Company No.1 / Transferor Company"), along with **LLM Appliances Private Limited**, (hereinafter "Applicant Company No.2 / Transferee Company and its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The Scheme is appended as **Annexure 13** at **Page No. 223** of the application.

2. The Applicant Companies in this Company Application have sought for the following reliefs;

Particulars	Equity Shareholders	Preference Shareholders	Secured Creditors	Unsecured loan Creditors	Unsecured trade creditors
Transferor Company/ Applicant Company -1	To Dispense with the meeting	N/A	To Dispense with the meeting	To Dispense with the meeting	To Dispense with the meeting
Transferee Company/ Applicant Company -2	To Dispense with the meeting	N/A	To Dispense with the meeting	To Dispense with the meeting	To Dispense with the meeting

3. The rationale of the scheme is as under:

(i) *The Transferor Company and the Transferee Company are engaged in allied and complementary businesses relating to household appliances, kitchen appliances, utensils, luggage and related trading and manufacturing activities. The amalgamation will enable consolidation of business operations, integration of supply chains, and elimination of duplication of administrative and operational functions;*

(ii) *The proposed amalgamation will result in economies of scale through rationalisation of overheads, reduction in compliance and administrative costs, improved procurement efficiencies, and optimal utilisation of shared infrastructure, personnel and managerial expertise;*

(iii) *The consolidation of assets, liabilities and reserves of the Transferor Company with those of the Transferee Company will result in a stronger balance sheet, improved financial flexibility, enhanced net worth and better ability to raise funds and manage working capital requirements;*

(iv) *The amalgamated entity will benefit from a unified business platform, enabling better brand positioning, improved market reach and the ability to pursue growth opportunities more effectively in domestic and international markets;*

(v) *The Scheme is fair and reasonable and does not adversely affect the interests of the shareholders, creditors or employees of either the Transferor Company or the Transferee Company. The rights of creditors remain fully protected, and the*

employees of the Transferor Company shall continue in service with continuity of employment on terms not less favourable than those existing prior to the amalgamation.

4. It is stated that the Applicant Company No. 1/ Transferor Company **BCube Ventures Private Limited** (hereinafter referred to as "BVPL" or the "Transferor Company"), is a company incorporated on 30 January 2024 under the provisions of the Companies Act, 2013 (hereinafter referred to as the "Act"), having its registered office at Plot No. 30, Industrial Estate Main Road, Perungudi, Kanchipuram, Saidapet, Chennai Tamil Nadu - 600096, India, and bearing Corporate Identification Number **(CIN): U27501TN2024PTC167019**. The Transferor Company was formerly a limited liability partnership incorporated under the provisions of the Limited Liability Partnership Act, 2008 in the name and style of BCUBE VENTURES LLP, which was subsequently converted into the Transferor Company in accordance with the applicable provisions of the Act. Copy of the Certificate of Incorporation of the Transferor Company is annexed **as Annexure-1.**

4.1 The Authorized, Subscribed, Issued, and paid-up Share Capital of the Transferor Company as on March 31, 2025 is as follows

PARTICULARS	AMOUNT IN RS.
Share Capital as on 31.03.2025	
Authorised Capital: 50,000 Equity Shares of Rs. 10/- each	5,00,000/-
Total	5,00,000/-

Issued, Subscribed and Paid-up Capital	
50,000 Equity Shares of Rs. 10/- each	5,00,000/-
Total	5 ,00,000/-

The turnover of the Applicant Company No.1/Transferor Company for the financial year ended on 31.03.2025 is Rs. 291 lakhs and the net worth of the Applicant Company No.1/ Transferor Company is **negative Rs. 708 lakhs** as per Audited Financial Statements. (**Annexure 4).**

4.2 The brief objects of the Applicant Company No.1/Transferor Company enumerated in the Memorandum of Association (**Annexure 2**) are as follows:

> *"(i) To establish and run exquisite fancy stores consisting of rare utility, gift and monumental items anywhere in India, either solely or in collaboration with any other firm, company, or person, as a manufacturing and/or trading business operation*
>
> *(ii) To establish and carry on directly or in collaboration with any other firm,……"*

5. It is stated that the Applicant Company No.2/ Transferee Company, **LLM Appliances Private Limited** (hereinafter referred to as "LAPL" or the "Transferee Company") is a private company incorporated under the provisions of the Companies Act, 1956 on August 2, 1994 under the name and style of "LLM APPLIANCES LIMITED." Subsequently, upon conversion into a private company under Section 18 of the Company Act, 2013, and pursuant to the approval of the Central Government (Tamil Nadu, Chennai, Andaman and Nicobar Islands) vide

SRN C76502137 dated February 17, 2016, the name of the company was changed to "LLM APPLIANCES PRIVATE LIMITED." The company bears Corporate Identification Number **U28991TN1994PTC028237** and has its registered office at 37/1, Kolathur Village, Mambakkam - Vandalur, Kelambakkam Road, Chennai, Tamil Nadu, India – 600127. Copy of the Certificate of Incorporation and the Certificate pursuant to conversion of the Transferee Company are annexed as **Annexure-6**.

5.1 The Authorized, Subscribed, Issued and Paid- up Share Capital of the Transferee Company as on March 31, 2025 is as follows:

PARTICULARS	AMOUNT IN RS.
Share Capital as on 31.03.2025	
Authorised Capital: 1,50,00,000 Equity Shares of Rs. 10/- each	15,00,00,000/-
Total	15,00,00,000/-
Issued, Subscribed and Paid-up Capital	
1,02,20,994 Equity Shares of Rs. 10/- each	10,22,09,940/-
Total	10,22,09,940/-

The turnover of the Applicant Company No.2/Transferee Company for the financial year ended on 31.03.2025 is Rs. 6,993,19 lakhs and the net worth of the Applicant Company No.2/ Transferee Company is positive Rs. 24,426.23 lakhs as per Audited Financial Statements.**(Annexure 9)**

5.2 The brief objects of the Applicant Company No.2/Transferee Company enumerated in the Memorandum of Association (**Annexure 7**) are as follows:

"(i). To carry on the business as Importers, Exporters, Manufacturers and Dealers of household and industrial appliances from all types of metals, plastics, ebonite including Kitchen Waste Disposers, Kitchen Sinks, Dish Washers, Induction Hobs and Electrical Appliances including Electric Motors of every kind and description.

(ii). To purchase, take on lease or otherwise acquire the undertaking, business and property or any part thereof, of any company or firm carrying on business as manufacturers of house-hold appliances in India or elsewhere or any other business which the company is entitled to carry on.

(iii). To carry on the business of manufacture and sale of boilers and tankers of all types used in manufacturing activities carried on in all types of industries……."

6. It is stated that this Application has been filed in relation to a Scheme of Amalgamation between **BCube Ventures Private Limited** *("*Applicant Company No.1/Transferor Company") and **LLM Appliances Private Limited** ("Applicant Company No.2/Transferee Company") and its respective shareholders and creditors.

7. It is stated by the Applicant Companies that the proposed scheme is to obtain the benefits of consolidated business and to achieve economical, administrative, operational, and monetary advantages. It is stated that for this reason, the Board of Directors of the Applicant Companies, at their respective Board Meetings approved and adopted a Scheme of Amalgamation on **18.12.2025**. Copy of the Board Resolution passed by the Transferor Company and Transferee

Company approving the Scheme of Amalgamation are annexed as **Annexure 11 and 12** respectively.

8. It is stated that under the Scheme, the entire undertakings and businesses of the Transferor Company is to be transferred and vested in the Transferee Company with effect from the Appointed Date, i.e., the start of business hours on **April 1, 2025**, or such other date as may be directed by the Tribunal.

9. It is stated that:

> **(i)** The Sub Clause (viii) of Object Clause III (B) of the Memorandum of Association of the Transferor Company authorizes amalgamation with any other company; and
>
> **(ii)** The the Sub Clause 8 of Object Clause III (B) of the Memorandum of Association of the Transferee Company authorizes amalgamation with any other company.

10. It is stated that the proposed Scheme shall not in any way, directly or indirectly, affect the rights and interests of the Shareholders/ Creditors of both the Applicant Companies and the assets of the Applicant Company No.2/ Transferee Company are more than sufficient to meet the liabilities of the Transferor Company.

11. The share swap ratio pertaining to the scheme of amalgamation is as follows:

*" for every 5 equity shares of **BCube Ventures Private Limited**, the shareholders will receive 4 equity shares of **LLM Appliances Private Limited**."*

The copy of Share Swap report obtained from Registered Valuer is annexed as **Annexure 30**.

12. The Applicant Companies submits that the Certificate from the Statutory Auditors of the Transferor Company and Transferee Company have been obtained to the effect that accounting treatment proposed in the Scheme is in conformity with Accounting Standard as prescribed under Section 133 of the Act. The certificates are annexed as **Annexure 31 and 32** respectively.

13. Taking into consideration the Application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions:

A. BCUBE VENTURES PRIVATE LIMITED
(APPLICANT COMPANY NO.1/TRANSFEROR COMPANY)

I. EQUITY SHAREHOLDERS

(i) It is represented that, there are **3(Three**) Equity Shareholders of Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of Equity Shareholders is placed as **Annexure 14** of the application. All shareholders constituting 100% have provided their consent to the scheme via consent affidavits. Copy of consent affidavits are placed as **Annexure 15**.

(ii) Since it is represented by the Applicant Company-No.1/Transferor Company that the shareholders' consent have been obtained by way of consent affidavits, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

II. SECURED CREDITORS.

(i). It is represented that, there is 1 (One) secured creditor to the Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of secured creditors is placed as **Annexure 16** of the application. The sole secured creditor constituting 100% has provided his consent to the scheme via consent affidavit. Copy of consent affidavit is placed as **Annexure 17**

(ii). Since it is represented by the Applicant Company-No.1/Transferor Company that the sole secured creditor's consent has been obtained by way of consent affidavit, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

III. UNSECURED LOAN CREDITORS

(i). It is represented that, there are **5 (five)** unsecured loan creditors to the Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of unsecured loan creditors is placed as **Annexure A-18** of the application. The consent of all unsecured loan creditors representing 100**%** of value has been obtained by way of consent affidavits, which are enclosed as **Annexure 19.**

(ii). Since it is represented by the Applicant Company-No.1/Transferor Company that the consent of all unsecured loan creditors representing 100% has been obtained, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

IV. UNSECURED TRADE CREDITORS

(i). It is represented that, there is 1 **(one)** unsecured trade creditor to the Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of unsecured trade creditors is placed as **Annexure A-20** of the application. The consent of the sole unsecured trade creditor representing 100**%** of value has been obtained by way of consent affidavit, which is enclosed as **Annexure 21.**

(ii). Since it is represented by the Applicant Company-No.1/Transferor Company that the consent of the sole unsecured trade creditor representing 100% has been obtained, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

B. LLM APPLIANCES PRIVATE LIMITED
(APPLICANT COMPANY NO.2/ TRANSFEREE COMPANY)

I. EQUITY SHAREHOLDERS

(i) It is represented that, there are **3(three)** Equity Shareholders for Applicant Company-No.2/Transferee Company. The certified true copy of the list of Equity Shareholders is placed as **Annexure A-22** of the application. All shareholders constituting 100% have provided their consent to the scheme via consent affidavits. Copy of consent affidavits are placed as **Annexure 23**.

(ii) Since it is represented by the Applicant Company-No.2/Transferee Company that the shareholders' consent have been obtained by way of consent affidavits, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS.

(i) It is represented that, there are **3(Three**) secured creditors to the Applicant Company-No.2/Transferee Company. The Certificate issued by the statutory auditor certifying the list of secured creditors is placed as **Annexure 24** of the application. All secured creditors constituting 100% of the value have provided their consent to the scheme via consent affidavits. Copy of consent affidavits are placed as **Annexure 25**.

(ii) Since it is represented by the Applicant Company-No.2/Transferee Company that the consent of all secured creditors have been obtained by way of consent affidavits, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. UNSECURED LOAN CREDITORS

(i) It is represented that, there is 1 **(one)** unsecured loan creditor to the Applicant Company-No.2/Transferee Company. The Certificate issued by the statutory auditor certifying the list of unsecured loan creditors is placed as **Annexure 26** of the application. The sole unsecured loan creditor constituting 100% of the value has provided his consent to the scheme via consent affidavit. Copy of consent affidavit is placed as **Annexure 27**.

(ii) Since it is represented by the Applicant Company-No.2/Transferee Company that the consent of the sole unsecured loan creditor has been obtained by way of consent affidavit, the necessity of convening, holding and conducting the meeting is ***dispensed with***

IV. UNSECURED TRADE CREDITORS

(i). It is represented that, there are 28 **(twenty right)** unsecured trade creditors to the Applicant Company-No.2/Transferee Company. The Certificate issued by the statutory auditor certifying the list of unsecured trade creditors is placed as **Annexure A-28** of the application. The consent of all the unsecured trade creditors representing 100% of value have been obtained by way of consent affidavits, which are enclosed as **Annexure 29.**

(ii). Since it is represented by the Applicant Company-No.2/Transferee Company that the consent of all the unsecured trade creditors representing 100% have been obtained, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

14. The Application stands **ALLOWED**. The Applicant Companies are directed to file Application for the Second Motion within a period of **fourteen (14)** days from the date of receipt of the Order.

-Sd-

VENKATARAMAN SUBRAMANIAM
MEMBER (TECHNICAL)

-Sd-

SANJIV JAIN
MEMBER (JUDICIAL)